Docusign Envelope ID: 717BB75A-92F8-8F59-8220-EFC5183A1892

CONFIDENTIAL SETTLEMENT AGREEMENT AND GENERAL RELEASE OF ALL CLAIMS

This CONFIDENTIAL SETTLEMENT AGREEMENT AND RELEASE OF CLAIMS (the "Agreement") is being entered into voluntarily, knowingly, and willingly by and between Brendan Ngehsi Newanforbi, also known as Brendan Ngwa Nforbi ("Plaintiff"), and Randstad US, LLC ("Randstad"). The RK Logistics Group, Inc. ("RK") is a defendant in the Lawsuit and is referred to, together with Randstad, as the "Defendants." Plaintiff and Randstad are collectively referred to as the "Parties." RK is not required to sign this Agreement, but RK is an intended third-party beneficiary of the Agreement. When used herein, the term "Randstad" includes Randstad US, LLC and all of its respective successors, parents, principals, members, related entities, and other affiliated corporations, divisions, subsidiaries, partnerships, limited liability companies, officers, directors, shareholders, employees, agents, attorneys, insurers, predecessors, successors, and assigns (and the officers, directors, agents, attorneys, successors, and assigns of such parent or other affiliated corporations, principals, divisions, partnerships, limited liability companies, and subsidiaries). When used herein, "RK" includes The RK Logistics Group, Inc. and any and all of RK's related companies, divisions, affiliates, parents, subsidiaries, subdivisions, predecessors, successors, affiliated organizations, and each of its directors, officers, agents, consultants, employees, insurers, attorneys, employee pension and benefit plans and their plan administrators, trustees, fiduciaries and/or agents, or any person acting for or on behalf of it and its successors, assigns, heirs, executors and administrators. Collectively, Randstad and RK shall be referred to as the "Released Parties."

WHEREAS, on July 20, 2026, Plaintiff commenced a lawsuit against the Released Parties by filing a complaint in the Superior Court of California, County of Alameda, entitled *Newanforbi v. Randstad US, LLC, et al.*, Case No. 26CV199902. The Complaint alleged violation of California Penal Code section 290.46(j)(2)(E), wrongful termination in violation of public policy, violation of the Investigative Consumer Reporting Agencies Act (California Civil Code section 1786 *et seq.*), invasion of privacy under Article I, Section 1 of the California Constitution, negligence per se (California Evidence Code section 669), and unfair business practices under California Business and Professions Code section 17200 (the "Lawsuit");

WHEREAS the Released Parties deny Plaintiff's allegations in the Lawsuit, deny any wrongdoing, and deny that Plaintiff is entitled to any relief against the Released Parties whatsoever;

NOW THEREFORE, in the interest of compromising all of Plaintiff's claims asserted in the Lawsuit against the Released Parties as well as resolving any and all outstanding issues between the Parties, the Parties agree to an adjustment, settlement, and release of all claims as detailed below.

1. Effective Date of Agreement. This Agreement shall be effective upon the latest date each Party executes this Agreement ("Effective Date"). If Randstad has not executed this Agreement by 5:00 p.m. Pacific Time on September 25, 2026, Plaintiff may withdraw from it by written notice, and it shall then have no effect.

2. Dismissal of the Lawsuit. Within five (5) business days after the Settlement Sum has been delivered to Plaintiff and has cleared, Plaintiff shall file a request for dismissal of the Lawsuit with prejudice as to both Randstad and RK. RK is not required to sign this Agreement or the request for dismissal, and Randstad shall bear any costs or fees RK seeks from Plaintiff arising from the Lawsuit or its dismissal. The Parties agree that they will use their best efforts to work cooperatively, and in good faith, to ensure the Lawsuit is dismissed with prejudice as to both Defendants, as well as DOES 1 through 20 as referenced in the Complaint. The Parties agree to stipulate to extend each Defendant's deadline to answer or otherwise respond to the Complaint through and including October 26, 2026, and Plaintiff agrees that he will not seek, request, or take the entry of default or default judgment against any Defendant before that date. Randstad

Docusign Envelope ID: 717BB75A-92F8-8F59-8220-EFC5183A1892

shall not seek any further extension, including under Code of Civil Procedure section 430.41, subdivision (a)(2), or section 435.5, subdivision (a)(2). If the Settlement Sum is not delivered by October 26, 2026, or any check is dishonored, Plaintiff may proceed with the Lawsuit or enforce this Agreement under Paragraph 21. Plaintiff will not seek default while delivered checks are pending clearance. The release in Paragraph 5 and the covenant in Paragraph 6 shall not take effect until the Settlement Sum has cleared.

3. Plaintiff's Representations. Plaintiff expressly represents that he has not filed or submitted any complaints, claims, charges, demands, arbitrations, or grievances against the Released Parties that is/are currently pending, unresolved, or active in any forum or tribunal, including, but not limited to, any court of law, government agency, arbitration forum, or otherwise, other than the Lawsuit between the Parties identified in this Agreement. If any such complaint, claim, charge, demand, arbitration, and/or grievance is later discovered, Plaintiff agrees to immediately dismiss or withdraw the same, with prejudice, and notify the Released Parties that he has done so.

4. Consideration.

a. Payment of the Settlement Sum. In consideration for the promises and covenants made by Plaintiff as set forth in this Agreement, and in full release and settlement of any and all claims, whether known or unknown, that Plaintiff may have against the Released Parties, Randstad agrees to pay to Plaintiff the total amount of Twenty-Five Thousand and 00/100 Dollars ($25,000.00) (the "Settlement Sum") by checks made payable to Brendan Ngwa Nforbi within fourteen (14) calendar days after the Effective Date of this Agreement, delivered by tracked overnight courier, with the tracking number emailed to Plaintiff on the day of dispatch, provided that Plaintiff has delivered to Randstad his properly completed IRS Forms W-4 and W-9. Randstad's receipt of Plaintiff's completed Forms W-4 and W-9 is a condition precedent to Randstad paying the Settlement Sum, and Plaintiff's email of those forms to counsel for Randstad constitutes receipt.

The Settlement Sum will be paid in the following manner:

(i) A check in the amount of Twelve Thousand Five Hundred and 00/100 Dollars ($12,500.00) made payable to "Brendan Ngwa Nforbi" for alleged lost wages, less all applicable and required withholdings and deductions, which will be reported on an IRS Form W-2; and

(ii) A check in the amount of Twelve Thousand Five Hundred and 00/100 Dollars ($12,500.00) made payable to "Brendan Ngwa Nforbi" for alleged non-wage damages, including alleged emotional distress, physical manifestations of emotional distress, statutory penalties, interest, costs, and other non-wage relief, which will be reported on an IRS Form 1099.

The Settlement Sum is consideration for Plaintiff's agreement not to pursue the claims he asserted in the Lawsuit against the Released Parties, and all of his other commitments, obligations, and undertakings set forth in this Agreement, including any claims against the Released Parties of any kind or character, whether or not specifically identified in the Lawsuit, and any attorneys' fees or costs claimed by Plaintiff.

Plaintiff agrees that the Settlement Sum shall constitute the entire amount of monetary consideration provided to Plaintiff under this Agreement and that he will not seek any further consideration or any claimed damages, penalties, costs or attorneys' fees in connection with the matters released by this Agreement.

Docusign Envelope ID: 717BB75A-92F8-8F59-8220-EFC5183A1892

b. Full Consideration. Plaintiff agrees the Settlement Sum constitutes full consideration for settlement of all his claims against the Released Parties, any claims for attorneys' fees or costs claimed by Plaintiff related to the claims released herein, all of his promises as set forth in this Agreement, and for all amounts that the Released Parties might owe him as a result of his application for employment, employment, or separation of employment with Randstad, and his assignment or prospective assignment to RK, through the Effective Date of this Agreement, including, but not limited to, medical and dental benefits, leave time, long and short term disability benefits, severance pay, bonuses, and other fringe benefits of any kind.

c. Tax Liability and Indemnification. The Released Parties make no representation to Plaintiff as to the tax liability, if any, on the Settlement Sum. Plaintiff agrees he shall be fully and solely responsible for any and all tax liabilities with respect to the Settlement Sum. In the event that any federal or state taxing authority or other government entity later determines that Plaintiff has any unpaid tax liability on the Settlement Sum and/or that the Released Parties should have withheld an additional amount from the payment made to Plaintiff, in consideration for the payment of the Settlement Sum by the Released Parties and other consideration specified herein, Plaintiff hereby agrees to fully indemnify, defend, and hold the Released Parties harmless from any and all tax consequences, fines, liabilities or other legal obligations arising from such unpaid taxes, penalties, and/or interest, and for any alleged failure to withhold taxes or other deductions required by law. In the event any federal, state, or local taxing authority seeks to collect from the Released Parties taxes or interest which would have been collectable from Plaintiff, Plaintiff hereby agrees to immediately reimburse the Released Parties for those taxes or interest.

5. General Release of Claims.

a. Plaintiff, on his own behalf and on behalf of his current and former spouses, domestic/civil union partner(s), significant other(s), descendants, dependents, heirs, executors, administrators, assigns, successors, agents, and attorneys, hereby settles with, compromises, releases, remits, acquits, discharges, and reaches accord and satisfaction upon any and all claims, demands, causes of action, remedies, obligations, damages, and liabilities which he had or now has, whether known or unknown, against the Released Parties, any employee benefit plans sponsored or administered by the Released Parties or related entities, and each of their respective fiduciaries, administrators, trustees, officers, directors, stockholders, employees, agents, and attorneys arising at any point in the past, up to the Effective Date of this Agreement. This release specifically includes, but is not limited to, any claims for wages, back pay, front pay, bonuses, commissions, severance pay, emotional distress, liquidated damages, compensatory damages, penalties, exemplary damages, attorneys' fees, or punitive damages arising out of or related to his application for employment, employment, or separation of employment with the Released Parties.

b. Plaintiff further unconditionally releases, discharges, and holds each and every Released Party harmless from each and every claim, cause of action, right, liability, or demand of any kind and nature in existence at the time this Agreement is executed, and from any claims which may be derived therefrom, that Plaintiff had, has, or might claim to have against any Released Party, including, but not limited to any and all claims:

(i) arising from Plaintiff's employment or any other terms and conditions of his relationship with the Released Parties, including without limitation any and all claims arising from or relating to any background check, consumer report, investigative consumer report, or

Docusign Envelope ID: 717BB75A-92F8-8F59-8220-EFC5183A1892

screening conducted in connection with Plaintiff's application for employment, employment, or prospective assignment;

(ii) relating to the separation of Plaintiff's employment relationship with Randstad and his assignment or prospective assignment to RK;

(iii) under the Civil Rights Acts of 1866, 1871, 1964, and 1991; 42 U.S.C. §§ 1981 through 1988; the Americans With Disabilities Act, 42 U.S.C. § 12101 *et seq*.; the Rehabilitation Act of 1973; the Employee Retirement Income Security Act of 1974, 29 U.S.C. § 18 *et seq*.; the Fair Labor Standards Act, 29 U.S.C. § 201 *et seq*. (including the Equal Pay Act); the Uniform Services Employment and Reemployment Act, 38 U.S.C. § 43 *et seq*.; the Age Discrimination in Employment Act of 1967, 29 U.S.C. § 621 *et seq*.; the Older Workers Benefit Protection Act; the Family and Medical Leave Act of 1993, 29 U.S.C. § 2601 *et seq*.; the National Labor Relations Act, 29 U.S.C. § 151 *et seq*.; the Occupational Safety and Health Act, 29 U.S.C. § 651 *et seq*.; Section 806 of the Sarbanes-Oxley Act of 2002, 18 U.S.C. § 1514A; the California Family Rights Act; the California Constitution; the California Fair Employment & Housing Act; the California Labor Code, California Penal Code section 290.46, including but not limited to subdivisions (j)(2)(E) and (j)(5) thereof; the Investigative Consumer Reporting Agencies Act (California Civil Code section 1786 *et seq*.); the Fair Credit Reporting Act (15 U.S.C. § 1681 *et seq*.); the California Consumer Credit Reporting Agencies Act (California Civil Code section 1785.1 *et seq*.); all including any amendments and their respective implementing regulations, and any other federal, state, local or foreign law (statutory, regulatory, or otherwise); however, the identification of specific statutes is for purposes of example only, and the omission of any specific statute or law shall not limit the scope of this general release in any manner;

(iv) based on any and all federal, state, or local laws regarding employment discrimination, harassment, or retaliation on the basis of disability (physical, mental or otherwise), perceived disability (physical, mental, or otherwise), mental condition, perceived mental condition, race, color, religion, sex/gender, sexual orientation, national origin, handicap, age, marital status, military or veteran status, or any other category protected by law (further including any regulation of an administrative agency or government authority, relating to discrimination, harassment, or retaliation in employment);

(v) based on any failure to provide reasonable accommodation(s) and any failure to engage in the interactive process;

(vi) based on any claims arising under tort, contract (oral, written, implied-in-fact, or otherwise), or quasi-contract laws or theories, whether arising under common law, constitution, statute, code, ordinance, regulation, or other applicable law, including but not limited to claims of breach of express or implied contract, wrongful, retaliatory, or constructive discharge, fraud, negligence, whistleblowing, defamation, negligent or intentional infliction of emotional distress, breach of implied covenant of good faith and fair dealing, promissory estoppel, detrimental reliance, invasion of privacy, false imprisonment, non-physical injury, or any other harm;

(vii) based on any and all claims for compensation of any type whatsoever;

(viii) based on wrongful termination of employment, including wrongful termination in violation of public policy; and

Docusign Envelope ID: 717BB75A-92F8-8F59-8220-EFC5183A1892

(ix) based on any other federal, state or local constitution, regulation, law (statutory or common), or legal theory, including any claims for monetary or equitable relief.

c. Any and all claims, causes of actions, rights, liabilities, demands, obligations, remedies, and damages described in and released by Subsections (a) and (b) of this Paragraph shall herein be referred to as the "Released Claims." The Released Claims specifically exclude, and do not release, any claims that cannot lawfully be released in this Agreement.

d. To achieve a full and complete release of the Released Parties, Plaintiff acknowledges that this Agreement is also intended to include in its effect Released Claims that Plaintiff does not know or suspect to exist in his favor as of the Effective Date of this Agreement. Accordingly, with respect to the Released Claims, Plaintiff waives all rights and benefits afforded by Section 1542 of the Civil Code of the State of California and does so understanding the significance of that waiver. Section 1542 provides the following:

> **A GENERAL RELEASE DOES NOT EXTEND TO CLAIMS THAT THE CREDITOR OR RELEASING PARTY DOES NOT KNOW OR SUSPECT TO EXIST IN HIS OR HER FAVOR AT THE TIME OF EXECUTING THE RELEASE AND THAT, IF KNOWN BY HIM OR HER, WOULD HAVE MATERIALLY AFFECTED HIS OR HER SETTLEMENT WITH THE DEBTOR OR RELEASED PARTY.**

6. **Covenant Not to Sue.** Plaintiff agrees he will not, directly or indirectly institute, solicit, encourage, advise, consult, or participate in the commencement and/or prosecution of any arbitration or lawsuit or other action against the Released Parties in regard to the Released Claims or any other claims or causes of action arising from acts or omissions alleged in the Lawsuit or from acts or omissions taken or made prior to the Effective Date of this Agreement. This specifically includes, but is not limited to, directly or indirectly assisting in, cooperating or consulting with, or encouraging any other parties or their attorneys to commence or prosecute any present or future arbitration or lawsuit in regard to the Released Claims or any other claims or causes of action arising from acts or omissions taken or made prior to the Effective Date of this Agreement.

Notwithstanding the foregoing, this Agreement does not prevent Plaintiff from providing truthful testimony pursuant to a subpoena or court order, nor does it prevent Plaintiff from filing a charge or participating in an investigation or proceeding with the Equal Employment Opportunity Commission, the Civil Rights Department, or any other government agency. Additionally, nothing herein shall act to prohibit Plaintiff from reporting potentially unlawful activity to any government agency or from engaging in protected concerted activity under the National Labor Relations Act. Plaintiff does, however, waive any right to recover monetary damages or relief, penalties, fines, sanctions, or any other financial recovery of any kind that could result from filing such a charge or participation in such investigation or proceeding, including but not limited to relief obtained through any administrative complaint, charge, or proceeding before the Equal Employment Opportunity Commission, the California Civil Rights Department, the California Department of Justice, or any other federal, state, or local agency.

Plaintiff further agrees and understands that he waives, and gives up any right to become, and promises not to consent to become, a member or class representative of any class or representative group in a case in which claims are asserted against the Released Parties in regard to the Released Claims or any other claims or causes of action arising from acts or omissions taken or made prior to the Effective Date of this Agreement. If, without Plaintiff's prior knowledge and consent, he is made a member or representative of

Docusign Envelope ID: 717BB75A-92F8-8F59-8220-EFC5183A1892

a class or representative group in any proceeding, he hereby agrees to opt out of the class or representative group at the first opportunity.

Plaintiff understands and agrees that this "Covenant Not to Sue" is an integral part of this Agreement, and a breach of this provision will be considered a material breach of this Agreement.

7. **Notices and Correspondence.** Unless otherwise noted, the Parties will send all notices or correspondences required by this Agreement to the following addresses by email and also by courier, hand delivery, certified mail, or a nationally recognized overnight delivery service that allows the Parties to confirm both mailing and delivery:

If to Randstad, to:

Kabat Chapman & Ozmer LLP
Attn: Nathan D. Chapman
1150 Spring Street NW, Suite 800
Atlanta, GA 30309
nchapman@kcozlaw.com

If to RK, to:

Tod C. Gurney, Esq.
Garcia & Gurney, ALC
6600 Koll Center Parkway, Suite 200,
Pleasanton, CA 94566
tgurney@garciagurney.com

If to Plaintiff, to:

Brendan Ngehsi Newanforbi
1455 Cat Tail Drive
Stockton, CA 95204
bnn.cdl@gmail.com

8. **Non-Defamation.** Plaintiff agrees that he shall not make any knowingly, intentionally, or maliciously false statements about any Released Party, verbally or in writing, including without limitation posting on Glassdoor, Indeed, LinkedIn, Facebook, X, Instagram, Snapchat, TikTok, YouTube, Reddit, blogs, and/or other public forums. Notwithstanding the foregoing, Plaintiff may testify truthfully pursuant to compulsory process, and nothing in this Agreement prevents Plaintiff from discussing or disclosing information about unlawful acts in the workplace, such as harassment or discrimination or any other conduct that Plaintiff has reason to believe is unlawful.

Plaintiff understands and agrees this "Non-Defamation" provision is an integral part of this Agreement, and a breach of this provision will be considered a material breach of this Agreement.

9. **No Admission.** This Agreement shall not be construed as an admission by Randstad or RK of any liability, or any acts of wrongdoing, or the violation of any federal, state, or local law, ordinance, or regulation, nor shall it be considered evidence of any such alleged liability, wrongdoing, or violation of federal, state, or local law, ordinance, or regulation. The Parties agree that this Agreement shall not be

Docusign Envelope ID: 717BB75A-92F8-8F59-8220-EFC5183A1892

admissible as evidence in any trial, hearing, deposition, or other action before any court or tribunal of any kind, except that this Agreement may be used as evidence in a subsequent proceeding in which any of the Parties allege a breach of this Agreement.

10. Confidentiality. Unless such disclosure is required under the law or to effectuate the dismissal of the Lawsuit, Plaintiff agrees that he will not, absent a court order which he will not seek, directly or indirectly discuss or disclose to any other person, firm, corporation, association, or organization: (a) any terms of this Agreement; (b) the consideration for this Agreement; (c) any discussions between Plaintiff and the Released Parties (or the contents thereof), related to the terms of this Agreement; (d) any negotiations between Plaintiff and the Released Parties related to the financial terms of this Agreement; or (e) any correspondence between Plaintiff and the Released Parties regarding the terms of this Agreement (collectively, the "Confidential Information"). Plaintiff agrees that if he is subpoenaed or served with any other legal action to obtain information regarding the Agreement, he shall immediately provide notice of such legal action addressed to the Released Parties' counsel (listed in Paragraph 7 above). If a Released Party takes legal action to challenge such disclosure, Plaintiff shall defer making such disclosure until the Released Party's challenge is finally resolved, unless ordered by a court to give the Confidential Information notwithstanding a Released Party's challenge.

Plaintiff agrees that he will not directly or indirectly make any posting on any website, instant messaging site, blog, or social networking site publicizing, discussing, or otherwise disclosing Confidential Information, including the fact that the Parties have entered into this Agreement or otherwise settled their disputes. If Plaintiff is asked a question about the status of the dispute, he is authorized to state, "the dispute has been resolved" or "the matter is behind me" and no more, without violating the provisions of this Paragraph. Plaintiff further understands and agrees that this "Confidentiality" provision is an integral part of this Agreement, and a breach of this provision will be considered a material breach of this Agreement. Plaintiff is not prohibited by this Agreement from discussing the consideration paid under this Agreement with his spouse or domestic partner, attorneys, tax preparer/financial planner, or any taxing governmental authority such as the IRS and the California Franchise Tax Board, and such disclosures will not be a violation of any term of this Agreement. Nothing in this "Confidentiality" provision shall be construed to prevent Plaintiff from discussing or disclosing information about unlawful acts in the workplace, such as harassment or discrimination or any other conduct that Plaintiff has reason to believe is unlawful, or from otherwise exercising any right that cannot lawfully be waived.

11. Merger and Integration. It is expressly agreed that this Agreement constitutes a full and final settlement and release of all claims identified herein. The Parties agree that this Agreement contains the entire agreement between the Parties with respect to the issues addressed herein. Any prior arbitration agreement between the Parties shall not apply to any dispute arising from or relating to this Agreement, which shall be resolved as provided in Paragraphs 20 and 21. This Agreement may not be changed, modified, amended, or altered except by written agreement signed by all Parties. This Agreement supersedes all prior agreements and understandings between Plaintiff and the Released Parties.

12. Severability. If any clause or provision herein shall be adjudged invalid or unenforceable by a court of competent jurisdiction, or by operation of any applicable law, it shall not affect the validity of any other clause or provision, which shall remain in full force and effect.

13. No Other Consideration. Plaintiff affirms that the only consideration he received for entering into this Agreement is as stated herein and that no other promise, representation, or agreement of any kind

Docusign Envelope ID: 717BB75A-92F8-8F59-8220-EFC5183A1892

has been made to, or relied upon by, Plaintiff in connection with his execution of this Agreement. Plaintiff further acknowledges that he has read the entire Agreement, has had the opportunity to consult with, and be advised of the legal effect of each provision contained in this Agreement by, an attorney of his own choosing, and fully understands the meaning and intent of the Agreement, including, but not limited to, its final and binding effect in relation to the release of all claims. Plaintiff acknowledges that, with the exception of the payments and benefits described herein, he is not entitled to any other payments, compensation, or fringe benefits of any kind.

14. **Capacity.** The Parties warrant and represent that they have not sold, assigned, granted, conveyed, or transferred to any other entity or person any of the rights, obligations, claims, demands, actions, or causes of actions described herein. The Parties have full legal and mental capacity to enter into, execute, and perform the terms and conditions contained in this Agreement and have entered into the Agreement voluntarily.

15. **Binding Effect.** This Agreement shall be binding upon and shall inure to the benefit of all the Parties hereto and their respective successors and assigns. Plaintiff's rights and obligations under this Agreement may not be assigned, sold, or transferred, and any purported assignment, transfer, or sale shall be void.

16. **Headings.** The headings used in this Agreement are for convenience only, are not a part of this Agreement, and do not affect the interpretation of any of its provisions.

17. **Counterparts.** This Agreement may be executed in one or more counterparts, at different times and places. When all Parties have executed a counterpart of this Agreement, it shall be binding on all Parties notwithstanding that all of them may not have signed the same counterpart. A facsimile or other copy of an executed counterpart hereof, such as an e-mailed PDF copy, shall have the same effect as an original.

18. **Opportunity to Consult Counsel.** Plaintiff acknowledges that he is representing himself in pro per in the Lawsuit, that he has read and understands this Agreement, and that he has been afforded a full and fair opportunity to consult with, and to be represented by, legal counsel of his own choosing in the negotiation, drafting, and execution of this Agreement, whether or not he has elected to do so. Randstad has been represented by legal counsel in the negotiation, drafting, and execution of this Agreement.

19. **Construction.** This Agreement has been jointly negotiated by all Parties, each of whom has had the opportunity to be represented by counsel of its own choosing, and no provision shall be construed or interpreted for or against any of the Parties on the basis that such provision, or any other provisions or the Agreement as a whole, was purportedly drafted by a particular Party.

20. **Governing Law and Venue.** This Agreement is made and entered into in the State of California and will in all material respects be interpreted, enforced, and governed under the laws of said state, without giving effect to any choice of law or conflict of law principles. The Parties agree that this Agreement is being made and entered into in and will be performed in Alameda County, California, and that venue for any action to enforce or interpret the terms of this Agreement shall be in Alameda County, California.

21. **Enforcement.** This Agreement is enforceable and binding, and may be enforced pursuant to California Code of Civil Procedure section 664.6 or through a separate civil action. This Agreement is admissible for enforcement pursuant to California Evidence Code section 1123.

22. **Survival.** The terms of this Agreement are contractual and will survive the execution of this Agreement.

Docusign Envelope ID: 717BB75A-92F8-8F59-8220-EFC5183A1892

23. **Attorneys' Fees and Costs.** Except as otherwise expressly stated in Paragraph 4 of this Agreement, Plaintiff and the Released Parties shall each bear their own costs and attorneys' fees incurred in connection with the Lawsuit, the preparation and negotiation of this Agreement, or any other matter arising out of or relating to the Plaintiff's employment or relationship with the Released Parties.

24. **Further Acts.** In addition to the acts recited in this Agreement, the Parties agree to perform, or cause to be performed on the date of this Agreement, or thereafter, any and all such further acts as may be reasonably necessary to consummate the transactions contemplated hereby. Each of the Parties agrees that he, she, or it, will execute and deliver all such documents and instruments as may be necessary and appropriate to effectuate the terms of this Agreement.

PLAINTIFF AFFIRMS THAT HE HAS HAD A FULL AND FAIR OPPORTUNITY TO CONSULT WITH AN ATTORNEY PRIOR TO SIGNING THIS AGREEMENT, HAS PERSONALLY READ THE AGREEMENT, AND IS ENTERING INTO THE AGREEMENT VOLUNTARILY, WITH FULL UNDERSTANDING OF ITS CONSEQUENCES.

PLAINTIFF

Signed by:
Brendan Ngwa Nforbi
4F031E26958745C...

BRENDAN NGEHSI NEWANFORBI
AKA BRENDAN NGWA NFORBI

Date: 9/25/2026

RANDSTAD US, LLC

By: Signed by: Gregory L. Smith, Jr.
C848C8E6B034B0...

Name: Gregory L. Smith, Jr.

Its: Senior Associate General Counsel

Date: 9/25/2026